

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331 of the Code of Criminal
Procedure Act No.15 of 1979.

Court of Appeal No:
CA/HCC/161/2024
High Court of Kalutara
Case No: HC/776/2019

Imburawala Kankanamge Sumith
Priyantha

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Gayal Kalatuwawa for the Appellant.**
Vishva Wijesuriya, SC for the Respondent.

ARGUED ON : **13/07/2026**

DECIDED ON : **08/09/2026**

JUDGMENT

P. Kumararatnam, J.

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted in the High Court of Kalutara under Section 296 of the Penal Code for committing the murder of Anagiyaddehige Siripala on or about 18th March 1998.

The trial commenced before the High Court Judge of Kalutara as the Appellant had opted for a non-jury trial. After the conclusion of the prosecution case, the Learned High Court Judge had called for the defence and the Appellant had made a statement from the dock. After considering the evidence presented by both parties, the Learned High Court Judge had convicted the Appellant as charged and sentenced him to death on 07/09/2023.

The trial commenced on 01.02.2022 as the Appellant had gone missing after the incident. He was apprehended by the deceased's son about 17 years after the incident and with the help of some others the Appellant was handed over to the police.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court.

The Learned Counsel for the Appellant informed this court that the Appellant has given consent to argue this matter in his absence. At the time of argument, the Appellant was connected via the Zoom platform from prison.

Background of the Case

PW2 Leelawathie is the wife of the deceased. At the time of the incident, she was living at Payagala with her husband and the children. Sometime before the incident, PW2 had gone abroad leaving the children under the care of the deceased. During her absence, her elder daughter had eloped with the Appellant. After some time, the couple had also started to live in the same house with them. The deceased was a barber by profession and he was the only breadwinner of the family. The Appellant had not done a permanent job, instead he had lived in PW2's house without any income. The Appellant used to drink alcohol and had constantly fought with his wife, the elder daughter of the deceased. Due to this, the deceased had arguments with the Appellant very frequently. In the morning of the day of the incident, the Appellant had assaulted his wife with a bucket and she had sustained an injury on her nose.

On the day of the incident, PW2 had prepared dinner and before they could have their dinner, at about 8.00pm they had heard PW3 Pradeep Kumara shouting at the Appellant not to pelt stones as it would hit their children. After hearing PW3's screams, when PW2 and the deceased came out and went towards the direction where they heard the utterance of PW3, the Appellant had shouted that he was waiting for the deceased, took a knife from his pocket and had stabbed the deceased on his chest once and had run away from the scene. The deceased shouting that Sumith had stabbed him, had run towards his house and collapsed near a king coconut tree. PW2 had identified the Appellant with an aid of a bottle lamp lit in the house of Premasiri and also by hearing his voice.

After the incident the Appellant had fled from the area and was apprehended about 17 years after the incident as stated above.

According to PW8, Shriyantha the JMO who gave evidence on behalf of the JMO Piyasoma, the cause of death is due to a stab injury to the right side of the heart.

The learned Counsel for the Appellant, had raised the following appeal grounds:

1. Has the trial judge failed to consider the defence version adequately?
2. Has the Learned Trial Judge erred in considering the Dock Statement and considered it against the Appellant?
3. Has the Learned Trial Judge failed to consider Prosecution witness PW2 as an interested witness which makes her evidence untrustworthy?

As the Appeal grounds raised by the Appellant are interconnected, all grounds will be considered together hereinafter.

PW02 had vividly described how she saw the incident to the court. The learned Counsel for the Appellant contended that the Appellant and the deceased used to fight each other after consuming liquor. PW2 had also admitted that the deceased and the Appellant fought frequently.

However, at the time of the incident, there was no fight or argument that had taken place before the incident. The deceased and PW2 had come out of the house after hearing PW3's screams. The deceased had told the Appellant not to throw stones, when the Appellant, using this opportunity, had stabbed the deceased with a knife on the chest of the deceased which had penetrated the heart of the deceased. The deceased had died on the way to the hospital.

PW2 had never said that the Appellant had thrown stones at her house. The evidence clearly suggests that the Appellant had stabbed the deceased when he came out with PW2 to inquire as to why PW1 was shouting. At that time, the Appellant had stabbed the deceased once and had run away from the scene. My considered view, therefore, is that the Learned High Court Judge had not erred in coming to the conclusion that the Appellant had thrown stones in order to bring the deceased out of the house.

The learned Counsel for the Appellant contended that PW2 had not given evidence with regard to the identity of the murder weapon. She had only said that an instrument like a knife was used to stab the deceased. In her evidence she clearly said that immediately after the incident the deceased had told her that the Appellant had stabbed him. This evidence was never confronted by the defense.

The learned Counsel for the Appellant also contended that the prosecution had not presented the murder weapon in this case.

Producing the murder weapon is not an absolute necessity in order to secure a conviction in a murder trial. Other elements of proof such as eyewitness testimony, medical reports or circumstantial evidence can also very well be used by the prosecution. The production of the murder weapon would be extremely useful to the prosecution as it would serve as strong evidence against the suspect. Further, the production of potential DNA or any available fingerprint evidence would also greatly assist in building up an actual record of the purchase of the weapon by the suspect. Such factors, along with potentially finding the weapon in a suspect's actual or constructive possession, would be clear examples of circumstantial evidence that can be used to strengthen cases which lack direct evidence.

The second proviso of Section 60 of the Evidence Ordinance states;

“Provided also that, if oral evidence refers to the existence or conditions of any material thing other than a document, the court may, if it thinks fit, require the production of such material thing for its inspection.”

It is important to note, that the second proviso of Section 60 of the Evidence Ordinance is not mandatory. The wording of the proviso clearly dictates that “the court may, if it thinks fit, require the production of such material thing for its inspection”, as such, the use of the word “may” instead of the mandatory word “shall” would mean that this confers a discretionary power to the court as opposed to a strict obligation.

In **SC Appeal No. 155/14** decided on 28th June, 2021, Yasantha Kodagoda, PC, J. held that:

“The impact or the legal consequences arising out of the absence of a particular physical item of evidence being presented by the prosecution at a trial will depend on a host of considerations, including the attendant facts and circumstances of the case. In such situations, the principal factor to be taken into consideration is, what purpose, if any, would the prosecution have achieved, had they produced the relevant item of real evidence. As E.R.S.R. Coomaraswamy has put it, “non-production of a physical object, which might conveniently be produced for inspection by the Court, does not render oral evidence respecting the same inadmissible” (Volume II, Book I, page 19). The legal consequences arising out of a doubt being created with regard to the integrity of a physical object that was produced, would be founded upon a consideration of the purpose sought to have been achieved by the party which produced the object. The legal consequences that may arise by a party not producing a material object which was within their control to

produce, would be the rendering of nugatory the purpose such party could have achieved by having produced it. It may also affect the cogency of the evidence. There may be situations where the circumstances of the case may justify the judge from drawing an adverse presumption in terms of section 114(f) of the Evidence Ordinance.”

In the case of **Wannaku Arachchilage Gunapala v. AG** 2007 (1) SLR 273 it was held that:

“A production in a case is only one of the circumstantial pieces of evidence against an accused in a case. When there is cogent evidence given by eye-witnesses sufficient to warrant a conviction it would not always be necessary to produce the weapons used in the crime.

I hold that non production of a material object is not fatal to a conviction. No questions were asked from him in cross examination as to the nature or the type of the weapon used. It appears that the nature or the type of the weapon was not put in issue instead the Counsel for the defense had challenged this witness only on the basis that the witness did not see the incident or the weapon that was used in the commission of the crime. Therefore, we find that it is not in the mouth of the accused now, to take up all these objections that were not raised at the trial.”

In this case, immediately after the incident, the Appellant had disappeared from the scene of crime and was only arrested after 17 years. It is obvious that the police could not conduct investigation with regard to the murder weapon as nothing was recovered from the scene of the crime. Further, the prosecution had led evidence of an eye witness without any contradictions or omissions. Therefore, I conclude that the non-production of the murder weapon has not caused any prejudice to the Appellant.

The learned Counsel strenuously argued that the Learned High Court Judge erred in considering the dock statement against the Appellant.

An Accused, after the closure of the prosecution case, if the defense was called, one of his entitlements under the Code of Criminal Procedure Code Act No. 15 of 1979 is to make a statement from the dock. The Criminal Law authorities commencing from **King v Vellayan Sittambram** 20 NLR 257 endorsed the right to make a statement from the dock by the Accused and its probative value in a criminal trial.

In **Queen v Kularatne** 71 NLR 529 it was held that:

“ix) that when an unsworn statement is made by the accused from the dock, the jurors must be informed that such statement must be looked upon as evidence, subject however to the infirmity that the accused had deliberately refrained from giving sworn testimony. But the jury must also be directed that (a) if they believe the unsworn statement, it must be acted upon, (b) if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed, and (c) that it should not be used against another accused.”

In **Kathubdeen v. Republic of Sri Lanka** [1998] 3 SLR 107 the court held that:

“It is settled law that an unsworn statement must be treated as evidence. It has also been laid down that if the unsworn statement creates a reasonable doubt in the prosecution case or if it is believed, then the accused should be given the benefit of that doubt.”

When an Accused make a statement from the dock (Unsworn Statement) the Learned High Court Judge should address his mind to the above.

In this case, the Appellant had made a very brief dock statement and after consideration, the Learned High Court Judge had rejected the same stating that it failed to create a doubt in the prosecution case.

The Appellant's Counsel further contended that PW2, the wife of the deceased is an interested witness and was lying under oath to frame the Appellant. Hence, he submits that the evidence of PW02 should be considered with much caution.

In **Waman & Others v. State of Maharashtra** AIR 2011 SC 3327 the Supreme Court of India held that;

“There is no bar on accepting the evidence of related witnesses. Merely because the witnesses are related to the complainant or the deceased, their evidence cannot be thrown out. If their evidence is found to be consistent and true, the fact of being a relative cannot by itself discredit their evidence”.

In **Sarwan Singh and Others v. State of Punjab** (1979) 4 SCC 369 the Indian Supreme Court further held that;

“The Evidence of an interested witness does not suffer from any infirmity as such, but the courts require as a rule of prudence, not as a rule of law, that the evidence of such witnesses should be scrutinised with a little care. Once that approach is made and the court is satisfied that the evidence of the interested witness has a ring of truth, such evidence could be relied upon even without corroboration.

In **Balraje alias Trimbak v. State of Maharashtra** (2010) 6 SCC 673 the Indian Supreme Court further held that;

“If after a careful analysis and scrutiny of their evidence, the version given by them appears clear, cogent and credible, there is no reason to discard the same”.

In the **Attorney General v. Sandanam Pitchi Mary Theresa** [2011] 2 SRI.L. R 292 the Supreme Court held that:

“A key test of credibility is whether the witness is an interested or disinterested witness. Rajaratnam J. in Tudor Perera v. AG (SC 23/ 75 D.C. Colombo Bribery 190/B – Minutes of S.C. Dated 1/ 11/ 1975) observed that when considering the evidence of an interested witness who may desire to conceal the truth, such evidence must be scrutinized with some care. The independent witness will normally be preferred to an interested witness in case of conflict. Matters of motive, prejudice, partiality, accuracy, incentive, and reliability have all to be weighed (Vide, Halsbury Laws of England 4th Edition para 29). Therefore, the relative weight attached to the evidence of an interested witness who is a near relative of the accused or whose interests are closely identified with one party may not prevail over the testimony of an independent witness (Vide, Hasker v. Summers (1884) 10 V.L.R. (Eq.) 204 – Australia; Leefunteum v. Beaudoin (1897)28 S.C.R. 89) - Canada”.

The Learned High Court Judge very correctly had given his reasons as to why he accepts the evidence of PW02 as an unbiased witness. This witness had given evidence based on what she had seen on the date of the incident. She had given evidence about 24 years after the incident. It is abundantly clear that the trial court had scrutinized and considered the evidence presented by the prosecution very carefully and accepted the same as truthful and impressive to come to a correct finding.

In this case the eye witness without any contradictions, vividly explained how the Appellant had committed the murder of the deceased. Her evidence is further strengthened by the evidence of JMO PW8. PW2 had heard the deceased shouting that the Appellant had stabbed him before he collapsed near the king coconut tree.

In this case the Learned High Court Judge had not only considered the evidence of the eye witness but also considered other corroborating evidence in his judgment and come to a correct decision.

Considering the appeal grounds advanced by the Appellant in this case, they are totally devoid of merit.

Hence, I am of the view that there are no reasons to interfere with the judgment of the Learned High Court Judge of Kalutara. For the reasons stated above, I affirm the conviction and sentence imposed on the Appellant.

The Registrar is directed to send this judgment to High Court of Kalutara along with the original case record.

The appeal is dismissed.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J

I agree.

JUDGE OF THE COURT OF APPEAL